

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE NEW YORK

-----X
CHANTAY BOYKIN

Plaintiff,

SUMMONS
INDEX NO.

-Against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MENDOZA
SHIELD #8833, P.O. STOVALL INDIVIDUALLY
AND AS A POLICE OFFICERS, POLICE OFFICERS JOHN
DOE AND JOE DOE IDENTITY PRESENTLY
UNKNOWN BELIEVED TO BE FROM THE 32ND PCT.
INDIVIDUALLY AND AS A POLICE OFFICERS,

Plaintiff designates New York
County as the Place of trial.
The basis of the venue is that
New York County is the Place
where the cause of action
arose.

Defendants.
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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York); and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
December 5, 2013

EMDIN & RUSSELL, LLP.
Attorneys for Plaintiff
499 Seventh Ave 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
New York City Police Department
Office of the Corporation Counsel
100 Church Street
4th floor
New York, New York 10007

Police Officer Mendoza Shield #8833
c/o 32nd pct
250 West 135th Street
New York, New York 10030

Police Officer Stovall
c/o 32nd pct
250 West 135th Street
New York, New York 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE NEW YORK

-----X
CHANTAY BOYKIN

Plaintiff,

-Against-

VERIFIED COMPLAINT
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MENDOZA,
SHILED # 8833, P.O. STOVALL INDIVIDUALLY AND
AS A POLICE OFFICERS, POLICE OFFICERS JOHN
DOE AND JOE DOE, IDENTITY PRESENTLY
UNKNOWN BELIEVED TO BE FROM THE 32ND PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.
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The Plaintiff, Chantay Boykin, complaining of the defendants, by her attorneys, Emdin & Russell, LLP, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the New York Police Department hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, and more specifically

on the 6th day of December, 2012, the defendant, Police Officer Mendoza, Shield #8833, hereinafter referred to as “Mendoza” was employed by the defendant, “City”, and/or “NYPD”.

4. Upon information and belief, that at all times hereinafter mentioned, and more specifically on the 6th day of December, 2012, the defendant, Police Officer Stovall, hereinafter referred to as “Stovall” was employed by the defendant, “City”, and/or “NYPD”.
5. Upon information and belief, at all relevant times hereinafter mentioned, “Mendoza” and “Stovall” was assigned to the 32nd pct.
6. At all relevant times hereinafter mentioned, “Mendoza” and “Stovall” acted in their individual capacity as police officers and acted within the scope of his employment.
7. Upon information and belief, that at all times hereinafter mentioned, specifically on the 6th day of December, 2012, the defendants John Doe and Joe Doe were employed by the Defendant, “City”, and/or “NYPD”. They are sued in a fictitious capacity as their identities are presently unknown.
8. Upon information and belief, at all relevant times hereinafter mentioned, John Doe and Joe Doe were assigned to the 32nd pct.
9. At all relevant times hereinafter mentioned, Joe Doe and John Doe acted in their capacity as a police officer(s) and acted within the scope of their employment.
10. “Mendoza,” “Stovall,” “Joe Doe,” and “John Doe” hereinafter will be collectively referred to as “The Officers”.
11. At all relevant times hereinafter mentioned, including on December 6, 2012, “The Officers” were required to enforce and comply with the New York City Patrol Guidelines

12. Upon information and belief "The Officers" were interviewed, hired, investigated, trained, retained, monitored, supervised and employed by the defendant "City".
13. That the Plaintiff timely filed and served a Notice of Claim.
13. The City acknowledged receipt of the notice of claim and held a 50(h) hearing of the Plaintiff
14. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York and the said Defendant has neglected or refused to make any adjustment or payment thereof.
15. The herein Plaintiff's 50H hearing was held on December 2, 2013.
16. That this action is commenced within one year and 90 days after the cause of action arose.
17. Upon information and belief at all times hereinafter mentioned, and specifically on the 6th day of December, 2012, at approximately 8:45 p.m. the Plaintiff was lawfully present at or inside the 32nd precinct, located at 250 West 135th Street, New York, New York 10030. At the above location the Plaintiff was inquiring as to the arrest of her nephew.
18. The Plaintiff at the above place and location was informed that her nephew was positively identified as a participant in a robbery.
19. Plaintiff assured "The Officers"/Defendants that her nephew could not have participated in any robbery because he goes straight after school to his uncles' apartment and does not leave that location.
20. Plaintiff was ordered to wait in the 32nd precinct vestibule for which she complied.
21. Shortly thereafter the Plaintiff's Aunt arrived, (the nephew's Great Aunt) and demanded to see her son. The Aunt was denied access and was also ordered to wait in the vestibule area.

22. As the Plaintiff was guiding the Aunt to the vestibule, the Aunt, who just had hip replacement and in her late sixties, was battered by Police Officers Mendoza and Stovall.
23. Police Officer Mendoza, pushed through “The Officers” and placed his forearm in between the Aunt’s neck and chest.
24. Plaintiff yelled “what are you doing, she is sixty-seven years old and just recently had hip replacement.”
25. Defendant/”Mendoza” responded “I do not care.”
26. Plaintiff responded “Get your fuckin hands off of her,” whereupon, other Officers pulled “Mendoza” back while he continued to yell at the Plaintiff and her Aunt.
27. Defendant/”Mendoza” did not stop with yelling at the Plaintiff, he then tackled Plaintiff to the ground and placed one wrist in handcuffs while yelling “Stop resisting.”
28. Plaintiff never resisted arrest and was in total shock when she was tackled and thrown to the 32nd precinct’s floor. Plaintiff was in fear and crying profusely.
29. “The Officers” then handcuffed the Plaintiff and detained her in a holding cell as she observed her nephew eventual release.
30. Plaintiff was illegally searched, detained, and held in handcuffs in a holding cell for approximately four hours.
31. Plaintiff repeatedly requested medical attention but was ignored and refused.
32. Plaintiff eventually received a three Desk Appearance Tickets/Summons for Disorderly Conduct and other charges, despite the fact she was not disorderly or had committed any crime.
33. Plaintiff suffered injury and pain to her wrists, neck, back, forearm, and lasting

psychological injuries.

34. Upon Information and belief the Desk Appearance Tickets/Summons were issued by "Mendoza."
35. Said Summons were issued for the purpose of criminally prosecuting the Plaintiff.
36. "Mendoza"/"Stovall"/ "The Officers" knew or should have known that the Summons were false.
37. None of the abovementioned statements were true.
38. As a result of the false Summons that were issued the Plaintiff was compelled to attend Court appearances on numerous dates, until such time as when all charges were dismissed against her on April 3, 2013.
39. That as a result of the aforementioned conduct, the Plaintiff was injured physically and mentally and sustained damages exceeding the jurisdiction of the lower courts.
40. Plaintiff, was and is, at all times, innocent of all charges and had committed no crime.
41. That this action falls within one of the exceptions of CPLR 1601.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST
ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT

42. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "41" with the same force and effect as if more fully and at length set forth herein.
43. That beginning on or about the 6th day of December, 2012, at the approximate hours of 8:45 p.m. at or near "the location", until her release from custody from the 32nd pct., the

Defendant, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without any just cause or grounds therefore, and held her against her will under full force of arms.

44. That said imprisonment was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or any cause to believe that the Plaintiff was guilty of any crimes, or that the Defendants had just cause to imprison the Plaintiff.
45. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest or imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
46. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; in that the Plaintiff was conscious of her confinement; the Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
47. That by reason of the aforesaid false imprisonment, arrest, malicious prosecution detention/excessive force, battery and assault of the Plaintiff, she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.
48. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS

49. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully and at length set forth herein.
50. That beginning on or about the 6th day of December, 2012, at approximately 8:45 p.m. the Defendants, and their agents, servants and/or employees intentionally arrested, handcuffed, detained and imprisoned Plaintiff, without any just cause or grounds therefore.
51. That the Plaintiff was falsely arrested, imprisoned and accused by the Defendants, their agents, servants and/or employees of having committed the crimes previously stated.
52. That said arrest was caused by the Defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the Plaintiff was guilty of any crime.
53. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
54. The Defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff, batter, assault, and arrest the Plaintiff; the Plaintiff was conscious of her

arrest and confinement ; the Plaintiff did not consent to her arrest and confinement; and the arrest and confinement was not otherwise privileged.

55. That by reason of the aforesaid false arrest and false charges filed against her, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.
56. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT ON BEHALF OF THE
PLAINTIFF AGAINST ALL NAMED DEFENDANTS:**

57. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and effect as if fully set forth herein.
58. Upon information and belief, on or about the 6th day of December, 2012, commencing at the approximate hour of 8:45 p.m. in the vicinity of "the location" (32nd precinct) and inside the location "Mendoza"/ "Stovall"/ "The Officers", and/or other officer(s) unknown, while acting in the scope of their employment as Police Officers and as agents for the Defendant the "City", without just cause or provocation and with great force and violence, tackled and thrown to the ground of the 32nd precinct, handcuffed, assaulted battered, and threatened and degraded the Plaintiff.
59. That the Defendants, their agents, servants and/or employees, including but not limited to "The Officers", acting as an agent(s) on behalf of the Defendant "City", within the scope of

their employment, intentionally, willfully, and maliciously assaulted the Plaintiff, in that “The Officers” and other Police Officers had the real or apparent ability to cause imminent harmful or offensive bodily contact with the Plaintiff and intentionally did an act which threatened to and did cause such contact to the Plaintiff. That said acts caused apprehension of such offensive contact to the Plaintiff and “The Officers” and possible others unknown, in a hostile and/ or offensive manner touched the Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such assault of and about her body and limbs.

60. That said acts occurred within the scope of the police “officers” employment with the “City”.
61. That said act(s) of force were excessive, unauthorized and unjustified.
62. That by reason of the aforesaid intentional assault, the Plaintiff suffered physical and psychological injuries to her wrists, neck, back, and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that she was otherwise damaged.
63. That by reason of the aforesaid assault, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY ON BEHALF OF THE
PLAINTIFF AGAINST ALL NAMED DEFENDANTS**

64. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked “1” through “63” with the same force and effect as if fully set forth herein.

65. Upon information and belief, on or about the 6th day of December, 2012, commencing at approximately 8:45 p.m. in the vicinity of "the location" inside the 32nd precinct whereupon "Mendoza"/ "Stovall"/"The Officers" and/or others unknown, while acting in the scope of their respective employment as Police Officers and as agents for the Defendant the "City," without just cause or provocation and with great force and violence tackled, thrown to the ground of the 32nd precinct, handcuffed, battered, threatened and degraded the Plaintiff.
66. That the Defendant, their agents, servants and/or employees, including but not limited to "Mendoza"/" Stovall"/ "The Officers," acting as an agent(s) on behalf of the Defendant "City," within the scope of their respective employment, intentionally willfully and maliciously battered the Plaintiff in that "Mendoza"/ "Stovall"/"The Officers" and other Police Officers had the real or apparent ability to cause imminent harmful or offensive bodily contact with the Plaintiff and intentionally did an act which threaten to and did cause such contact to the Plaintiff, and "Mendoza"/ "Stovall"/"The Officers" and possible others unknown, in a negligent, hostile and/or offensive manner touched the Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and cause such batter and about her body and limbs.
67. That said acts occurred within the scope of the Police Officers employment with the "City."
68. That said act(s) of force were offensive, unwarranted, excessive, unauthorized and unjustified.
69. That by reason of the aforesaid battery, the Plaintiff suffered physical and psychological injuries to her wrists, back, body, neck, and mind was rendered sick, sore and lame, and

among other things suffered conscious pain and suffering, and that she was otherwise damaged.

70. That by reason of the aforementioned battery, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AND AS FOR A FIFTH CAUSE OF
ACTION FOR MALICIOUS PROSECUTION AGAINST ALL NAMED DEFENDANTS

71. The Plaintiff repeats, reiterates and realizes each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.
72. The Defendants knowingly filled out false police reports, and issued false Summons, all for the purpose of prosecuting the Plaintiff for crimes they knew or should have known that she did not commit.
73. That as a result of the Defendants conduct, the Plaintiff was compelled to appear in court on numerous dates to defend herself against the false charges filed by the Defendant.
74. That the Plaintiff was innocent of charges filed against her, and that on or about April 3, 2013 all criminal charges were dismissed against the Plaintiff.
75. That by reason of the aforesaid intentionally falsely imprisoned, detained, assault and battery, infliction of emotional distress in which the Plaintiff suffered physical and psychological injuries to her wrists, back, body and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that she was otherwise damaged.

76. That by reason of the aforesaid battery, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SIXTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY
“MENDOZA”, “STOVALL”, AND/OR JOE DOE AND JOHN DOE IN THEIR
INDIVIDUAL CAPACITY AND AS AN AGENT OF THE CITY OF NEW YORK**

77. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "76" with the same force and effect as if more fully and at length set forth herein.
78. That at all times mentioned, ‘Mendoza’, “Stovall”, and/or “Joe and John Doe” were employed by the Defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
79. That at all times hereinafter mentioned, “Mendoza” /” Stovall”/“The Officers’ were acting pursuant to orders and directives from Defendant, The City of New York.
80. That during all times hereinafter mentioned, “Mendoza”/”Stovall”/ “The Officers” individually and collectively, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the

First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

**AND AS FOR A SEVENTH CAUSE OF ACTION FOR INTENTIONAL
INFLECTION OF EMOTIONAL DISTRESS, THE PLAINTIFF ALLEGES**

AGAINST THE DEFENDANTS:

82. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "100" with the same force and effect as if more fully and at length set forth herein.

83. That "The Officers", at the aforementioned date, time and location, acting in the scope of their employment, acted in a manner that exceeded all reasonable bounds of decency with intent to inflict emotional distress upon the Plaintiff.

84. That the Plaintiff did sustain emotional distress by way of humiliation, sleeplessness, anxiety, fear of police, the inability to perform her employment responsibilities all as a result of the Defendant Officers' conduct and the City, under the doctrine of respondent superior.

85. That by reason of the aforesaid, the Plaintiff has been damaged in sum exceeding the jurisdictional limits of the lower court.

86. That the unlawful and illegal conduct of the Defendant officers deprived the Plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth

Amendments to the Constitution of the United States; and,

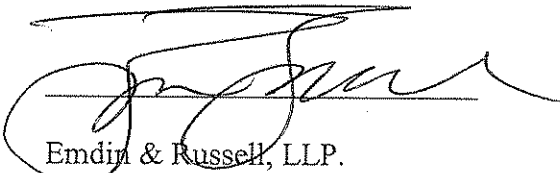
- b) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c) The right to be free of cruel and unusual punishment
- d) The right to freedom of speech
- e) The right to be free of false arrest, malicious prosecution and conspiracy to cover up said false arrest

- 87. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive force, seizure of Plaintiff's person, her false arrest and false imprisonment, assault, battery, intentional infliction of emotional distress, denial of prompt and necessary medical attention, and the malicious prosecution of the Plaintiff, the defendant "officers" violated Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, the Defendant officers violated 42 U.S.C §1983.
- 88. That as a direct proximate result of the Defendants actions the Plaintiff, was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
- 89. That by reason of the aforesaid, the Plaintiff was injured in mind and body,
- 90. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages,

costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the Defendants on the First through Seventh causes of action in a sum to be determined by the trier of fact, plus costs, attorney's fees and such other relief as to the court seems just and proper on the first through seven causes of action, and punitive damages on the Sixth Cause of action.

DATED: New York, New York
December 5, 2013

A handwritten signature in black ink, appearing to be "J. Emdin", is written over a horizontal line.

Emdin & Russell, LLP.
Attorneys for Plaintiff
Office and P.O. Address
499 Seventh Ave, 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin, & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Verified Complaint and upon information and belief know the contents thereof; that the same are believed to be true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
December 5, 2013


By: Royce Russell, Esq.